



DECISION

Complaint No. : POS/5586/KE/506/2024

Name and Address of the Complainant : Mr. Ghulam Hussain Shaikh, R/o. House No. 354, Karachi Bar Society, Scheme-33, Near Shahmeer Residency, Karachi.

Name of the Agency Complained against : HW&SC (HDA)

Name & Designation of Investigation Officer : Syed Farrukh Habib
Director, Regional Office, Karachi (East)

Subject : **ALLEGED DELAY IN PAYMENT OF SERVICE DUES TO THE COMPLAINANT WHO RETIRED ON 29.02.2024.**

THE COMPLAINT

Mr. Ghulam Hussain Shaikh, in his complaint dated 22.11.2024, stated that he is an employee of the Hyderabad Development Authority and retired on 29.02.2024 and has not yet received any of his service dues, including monthly pension, commutation, encashment of LPR, and G.P. Fund. He, stated that despite his efforts the HDA has not responded. He therefore, sought the intervention of this office for the resolution of his grievance.

PROCEEDINGS

2. After admission of the complaint by condoning the delay under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (as amended up to date), and after receiving the mandatory Affidavit on Form "A" along with other relevant documents, a report was called from the Agency. During the course of investigation proceedings, correspondence and exchange of reports and exchange of rejoinders, the Deputy Director, Audit & Accounts, HW&SC Hyderabad, vide his letter dated 06.10.2025, informed that the applicant, Mr. Ghulam Hussain Shaikh, has also filed Constitution Petition No. D-772 of 2025 before the Honourable High Court of Sindh, Circuit Court Hyderabad, seeking similar reliefs pertaining to his outstanding monthly pension and post-retirement dues. He further submitted that the Corporation is already defending the said petition before the Honourable Court and requested that the instant complaint be dismissed, as the matter is sub judice before a higher judicial forum.

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FINDING

3. I have examined the case record, reports, and correspondence. The complainant had filed complaint here for release of his post-retirement dues; however, in the meanwhile and as per Agency's report, the complainant has also filed Constitution Petition D-772/2025 before the Honourable High Court of Sindh, Circuit Court Hyderabad, seeking the same reliefs. Hence, the subject matter stands sub judice and goes beyond the jurisdiction of this office.

CONCLUSION

4. In view of the above, further proceedings in the matter are hereby dropped and the complaint in hand is disposed of as subjudice.

Given under my hand and seal of the office



Sd /-

(Muhammad Sohail Rajput)

Sitara-e-Imtiaz. PAS

Ombudsman Sindh

Karachi, dated 25-11-2025

